

September 4, 2026, Civil Law & Motion Tentative Rulings

1. CU0001190 Alice Branton, et al. vs. Zarlisht Fakiri, D.O., et al.

Defendants Edelweiss Holdings, LLC, dba Crystal Ridge Care Center; California OPCO, LLC; Providence Administrative Consulting Services, Inc.; Providence Group, Inc.; and 396 Dorsey Drive, LLC (“Settling Defendants”) filed a motion for determination of good faith settlement between Plaintiffs and Settling Defendants. The Court grants the unopposed motion.

Motion to Seal

Settling Defendants’ motion to seal an “unredacted” settlement agreement/release limited to the settlement amount is granted.

Legal Standard

In an action alleging claims against multiple joint tortfeasors, a party may seek a good faith settlement determination under Code of Civil Procedure section 877.6(a) which, if granted, generally bars claims for contribution and indemnity by any other joint tortfeasor against the settling party. Code Civ. Proc. §§ 877.6(a)(1), (c).

“Any party to an action in which it is alleged that two or more parties are joint tortfeasors ... shall be entitled to a hearing of good faith of a settlement entered into by the plaintiff or other claimant and one or more alleged tortfeasors” Code Civ. Proc. § 877.6(a)(1). Rulings on a motion for good faith settlement must be made “in view of the equitable goals of the statute, in conformity with the spirit of the law and in a manner that serves the interests of justice,” and must serve the goals of “encouraging settlement among all interested parties” and “equitably allocating costs among multiple tortfeasors,” as opposed to allowing a party to obtain “protection from its indemnification obligation at bargain-basement prices.” *Long Beach Memorial Medical Center v. Sup. Ct.* (2009) 172 Cal. App. 4th 865, 873, 876.

The requirement of good faith is to protect the interests of the non-settling defendants. *City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1263. Once the settling party has demonstrated a settlement exists, a presumption of good faith exists. *Schultz v. Super. Ct.* (1980) 104 Cal.App.3d 250, 252. A party asserting a settlement was reached in bad faith bears the burden of proof of demonstrating bad faith. *Ibid.* “When no one objects, the ... motion which sets forth the ground of good faith, accompanied by a declaration which sets forth a brief background of the case, is sufficient.” *City of Grand Terrace*, 197 Cal.App. 3d at 1261.

Analysis

As a preliminary matter, this motion was served on all parties and no opposition was filed including an opposition by the non-settling party, Dr. Chandan Cheema, dba Capital Medical Extended Care. The Court deems Dr. Cheemas’s failure to oppose the motion as consent to the granting of the same. See Cal. Rules of Court, rule 8.54(c) (“failure to oppose a motion may be deemed a consent to the granting of the motion.”); see, e.g., *Amato v. Downs* (2022) 78 Cal.App.5th 435, 440, n.3 (unopposed motion can be granted on that basis, citing rule 8.54(c)).

In addition, Settling Defendants have made a prima facie showing of a good faith based on their motion and sealed filing. *See, e.g.*, Redacted Confidential Coulston Decl., ¶ 2, Ex. C. As noted before, the Non-Settling Defendant was advised of the settlement, including the confidential terms and amount of the settlement, and has not opposed the same. *See* Coulston Decl., ¶ 4, Ex. A. The presumption of good faith has not been challenged or rebutted. Therefore, the motion is granted.

2. CU0002033 Ingrid Speck, et al. vs. Justfly Corp., et al.

Defendants Justfly Corp. and Justfly, Inc.’s motion to set aside the defaults and default judgment is granted.

Defendants argue, among other things, that the defaults were never properly requested or entered as to the operative complaint such that the defaults and associated judgment are void. The Court agrees.

The court has authority to set aside a void judgment at any time. *Heidary v. Yadollahi* (2002) 99 Cal.App.4th 857, 862. “Indeed, section 473 itself contains a separate provision [subd. (d)] allowing the court to set aside a void judgment without any mention of a time limit. *Ibid.*; *see, e.g., Plotitsa v. Superior Court* (1983) 140 Cal.App.3d 755, 761 (“a default that is void on the face of the record when entered is subject to challenge at any time irrespective of lack of diligence in seeking to set it aside within the six-month period of [Code of Civil Procedure] section 473”).

“An ‘amended’ complaint supersedes all prior complaints, and the original complaint ceases to have any effect either as a pleading or as a basis for judgment.” *Malear v. State of California* (2023) 89 Cal.App.5th 213, 221 (quotations and citations omitted); *see also LAOSD Asbestos Cases* (2018) 28 Cal.App.5th 862, 875, n. 5. (“ ‘an amendatory pleading supersedes the original one, which ceases to perform any function as a pleading. ’ ‘Such amended pleading supplants all prior complaints. ... ’ ”)(citations and quotations omitted).

At bar, the defaults at issue were improvidently entered by the Clerk. Plaintiffs filed this action on April 18, 2025, and subsequently filed a First Amended Complaint (“FAC”) on June 23, 2025, which became the operative complaint. On *September 29, 2025*, Plaintiffs sought entry of default against Defendants as to the Complaint filed on April 18, 2025. *See* 9/29/25 Request for Default as to Justfly, Inc.; 9/29/25 Request for Default as to Justfly Corp. The Clerk incorrectly entered those defaults in connection with the non-operative complaint on or about the same date. These defaults are set aside.

Plaintiffs filed a March 2, 2026, request for default judgment as to the original 2025 complaint, which was granted by Judge Anderson (visiting judge) on March 6, 2026. That judgment is likewise void as it was premised on a non-operative complaint.

Finally, the Clerk entered a May 11, 2026, order setting aside the May 4, 2026, answers by Justfly, Inc. and Justfly Corp. to the operative amended complaint based on a belief that they had been defaulted. That was also erroneous. No lawful default or judgment barred the filing of